

CHAPTER 8.

An Act to make obligatory the carrying by bicycles and tricycles not propelled by mechanical power of rear lamps, red reflectors and white surfaces during the hours of darkness, and to relax temporarily, as respects such vehicles when stationary owing to the exigencies of the traffic or in order to comply with any traffic signal or direction, the obligation to show lights.

[7th March 1945.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. Paragraph (b) of section five of the Road Transport Lighting Act, 1927 (which exempts bicycles and tricycles not propelled by mechanical power from the obligation imposed by that Act to carry lamps showing red lights to the rear if there are attached thereto unobscured and efficient red reflectors), and, in subsection (1) of section nineteen of the Road Traffic Act, 1934 (which empowers the Minister of War Transport to provide by regulations, in the case of bicycles not propelled by mechanical power and other vehicles to or on which red reflectors are attached or carried, that the provisions of the said Act of 1927 which exempt any such vehicles from the obligation to show a red light to the rear shall not have effect unless there is also exhibited on the vehicle a white surface in accordance with the regulations), the words "bicycles not propelled by mechanical power and other", are hereby repealed.

2.—(1) At the end of the said section five there shall be added the following subsection :—

"(2) Every bicycle and tricycle not propelled by mechanical power shall, while on any road during the hours of darkness as defined by subsection (4) of section one of this Act,—

(a) carry attached thereto an unobscured and efficient red reflector; and

(b) exhibit thereon a white surface in accordance with regulations made by the Minister,

and it shall be the duty of any person who causes or permits any such bicycle or tricycle as aforesaid to be on any road

Cesser of exemption, in case of pedal cycles, from obligation to carry rear lamps. 17 & 18 Geo. 5 c. 37. 24 & 25 Geo. 5. c. 50.

Pedal cycles to carry red reflectors and exhibit white surfaces.

during the hours of darkness as defined as aforesaid to provide the bicycle or tricycle with a red reflector and white surface in accordance with the requirements of this subsection and of any regulations made under this Act ”.

(2) At the end of the proviso to section ten of the Road Transport Lighting Act, 1927 (which provides that a person driving or being in charge of a vehicle who is charged with an offence under that Act shall not be convicted if he proves that the offence arose through the negligence or default of some other person whose duty it was to provide the vehicle with a lamp or lamps), there shall be added the words “ or, in the case of a bicycle or tricycle not propelled by mechanical power, a red reflector or a white surface ”.

(3) This section shall come into operation on such day as the Minister of War Transport may by order appoint, and different days may be appointed as respects the provisions thereof relating to red reflectors and as respects the provisions thereof relating to white surfaces.

Temporary relaxation, in case of pedal cycles stationary owing to traffic, of obligation to show lights.

3. Notwithstanding anything in the Road Transport Lighting Act, 1927, or in section one of this Act, until such day as the Minister of War Transport may by order appoint, it shall not be necessary for a bicycle or tricycle not propelled by mechanical power to show the lights required by the said Act of 1927, as amended by this Act, to be shown, if the bicycle or tricycle is stationary owing to the exigencies of the traffic or in order to comply with any traffic signal or direction :

Provided that this section shall not have effect unless the bicycle or tricycle is as near as possible to the near or left-hand edge of the carriage-way.

Short title, citation and extent.

4.—(1) This Act may be cited as the Road Transport Lighting (Cycles) Act, 1945, and the Road Transport Lighting Act, 1927, and this Act may be cited together as the Road Transport Lighting Acts, 1927 and 1945.

(2) This Act shall not extend to Northern Ireland.

